DEPARTMENT OF THE ARMY
U.S. ARMY CORPS OF ENGINEERS, ST. PAUL DISTRICT
332 MINNESOTA STREET, SUITE E1500
ST. PAUL, MN 55101-1323

Regulatory File No MVP-2017-01912-LRK

Zilber Property Group
c/o Jason Lueders
710 North Plankinton Avenue
Milwaukee, WI 53203

Dear Jason Lueders:

This letter concerns your request for Department of the Army authorization to construct a new industrial facility with associated infrastructure in the Village of Pleasant Prairie. The project site is in Section 27, Township 1 North, Range 22 East, Kenosha County, Wisconsin.

This letter contains an initial proffered permit for your project. Also enclosed is a Notification of Administrative Appeal Options and Process (NAP) fact sheet and Request for Appeal (RFA) form for information regarding your right to object to these determinations.

If you object to the terms and/or conditions of this initial proffered permit, please see Section I-A. You must complete Section II of the RFA and submit it to the **District Engineer** in accordance with 33 C.F.R. Part 331. Your objections to the initial proffered permit must be received by the **St. Paul District Office** within 60 days of the date of the NAP or you will forfeit your right to appeal the permit.

If you wish to appeal the approved jurisdictional determination, please see Section I-D. To appeal this approved JD you must complete Section II of the RFA form and submit it to the **Mississippi Valley Division Engineer** within 60 days of the date of the NAP.

Before accepting the RFA, the Corps must determine that it is complete, that it meets the criteria for appeal under 33 C.F.R. § 331.5, and that it has been received by the District or Division Office within 60 days of the date of the NAP.

It is not necessary to submit an RFA form to the Corps District or Division Office if you do not object to the initial proffered permit or the approved jurisdictional determination enclosed with this letter.

If the permit, with all conditions, is acceptable, the permittee or authorized representative should sign each copy on the line above the words "PERMITTEE SIGNATURE," add the date and the signatory's name clearly underneath the signature, and return both forms via email to the contact listed in the last paragraph of this letter. The District Engineer, or his designated representative, will then sign both copies and return one to you for your records.

Federal regulations require a fee of $100.00 for the processing of permits that authorize the development of commercial or industrial activities in waters of the United States. Payment can be made at the following website: https://www.pay.gov/public/form/start/996412796. Instructions for using Pay.gov are attached. Please provide us with verification once payment has been made.

If your project will require off-site fill material that is **not** obtained from a licensed commercial facility, you must notify us at least five working days before start of work. A cultural resources survey may be required if a licensed commercial facility is not used.

If you have any questions, please contact Lorin Kinney in our Duluth office at (651) 383-5914 or lorin.r.kinney@usace.army.mil. In any correspondence or inquiries, please refer to the Regulatory file number shown above.

Sincerely,

Lorin Kinney

for

Joey Shoemaker
Chief, East Branch

Enclosure(s)

cc:
Sonya Ponzi, WI DNR
Sonya.Ponzi@wisconsin.gov

Adam Artz, Pinnacle Engineering Group
Adam.artz@pinnacle-engr.com

DEPARTMENT OF THE ARMY PERMIT

Permittee Jason Lueders (Zilber Property Group)
Permit No. MVP-2017-01912-LRK

Issuing Office St. Paul District
U.S. Army Corps of Engineers

NOTE: The term "you" and its derivatives, as used in this permit, means the permittee or any future transferee. The term "this office" refers to the appropriate district or division office of the Corps of Engineers having jurisdiction over the permitted activity or the appropriate official of that office acting under the authority of the commanding officer.

You are authorized to perform work in accordance with the terms and conditions specified below.

Project Description:

You are authorized to permanently discharge fill material into 1.46 acres of wetland and into 1,204 square feet (along 150 linear feet) of stream for the purpose of constructing an access road and parking lot for an industrial space commercial development. The authorized work area is shown on the attached drawings labeled 2017-01912-LRK Figures 1-3 of 3.

Project Location:
The project site is in Sections 27, Township 1 North, Range 22 East, Kenosha County, Wisconsin.

Permit Conditions:

General Conditions:

1. The time limit for completing the work authorized ends on December 31, 2029. If you find that you need more time to complete the authorized activity, submit your request for a time extension to this office for consideration at least one month before the date is reached.

2. You must maintain the activity authorized by this permit in good condition and in conformance with the terms and conditions of this permit. You are not relieved of this requirement if you abandon the permitted activity, although you may make a good faith transfer to a third party in compliance with General Condition 4 below. Should you wish to cease to maintain the authorized activity or should you desire to abandon it without a good faith transfer, you must obtain a modification of this permit from this office, which may require restoration of the area.

3. If you discover any previously unknown historic or archaeological remains while accomplishing the activity authorized by this permit, you must immediately notify this office of what you have found. We will initiate the Federal and state coordination required to determine if the remains warrant a recovery effort or if the site is eligible for listing in the National Register of Historic Places.

4. If you sell the property associated with this permit, you must obtain the signature of the new owner in the space provided and forward a copy of the permit to this office to validate the transfer of this authorization.

5. If a conditioned water quality certification has been issued for your project, you must comply with the conditions specified in the certification as special conditions to this permit. For your convenience, a copy of the certification is attached if it contains such conditions.

6. You must allow representatives from this office to inspect the authorized activity at any time deemed necessary to ensure that it is being or has been accomplished in accordance with the terms and conditions of your permit.

Special Conditions:

1. To offset the unavoidable loss of 1.46 acres of wet meadow wetland, the permittee shall purchase a minimum of 2.12 advanced wetland credits from the Wisconsin Wetland Conservation Trust In-Lieu Fee Program.

Further Information:

1. Congressional Authorities: You have been authorized to undertake the activity described above pursuant to:

( ) Section 10 of the Rivers and Harbors Act of 1899 (33 U.S.C. 403).

(X) Section 404 of the Clean Water Act (33 U.S.C. 1344).

( ) Section 103 of the Marine Protection, Research and Sanctuaries Act of 1972 (33 U.S.C. 1413).

2. Limits of this authorization.

a. This permit does not obviate the need to obtain other Federal, state, or local authorizations required by law.

b. This permit does not grant any property rights or exclusive privileges.

c. This permit does not authorize any injury to the property or rights of others.

d. This permit does not authorize interference with any existing or proposed Federal project.

3. Limits of Federal Liability. In issuing this permit, the Federal Government does not assume any liability for the following:

a. Damages to the permitted project or uses thereof as a result of other permitted or unpermitted activities or from natural causes.

b. Damages to the permitted project or uses thereof as a result of current or future activities undertaken by or on behalf of the United States in the public interest.

c. Damages to persons, property, or to other permitted or unpermitted activities or structures caused by the activity authorized by this permit.

d. Design or construction deficiencies associated with the permitted work.

e. Damage claims associated with any future modification, suspension, or revocation of this permit.

4. Reliance on Applicant's Data: The determination of this office that issuance of this permit is not contrary to the public interest was made in reliance on the information you provided.

5. Reevaluation of Permit Decision. This office may reevaluate its decision on this permit at any time the circumstances warrant. Circumstances that could require a reevaluation include, but are not limited to, the following:

a. You fail to comply with the terms and conditions of this permit.

b. The information provided by you in support of your permit application proves to have been false, incomplete, or inaccurate (See 4 above).

c. Significant new information surfaces which this office did not consider in reaching the original public interest decision.

Such a reevaluation may result in a determination that it is appropriate to use the suspension, modification, and revocation procedures contained in 33 CFR 325.7 or enforcement procedures such as those contained in 33 CFR 326.4 and 326.5. The referenced enforcement procedures provide for the issuance of an administrative order requiring you to comply with the terms and conditions of your permit and for the initiation of legal action where appropriate. You will be required to pay for any corrective measures ordered by this office, and if you fail to comply with such directive, this office may in certain situations (such as those specified in 33 CFR 209.170) accomplish the corrective measures by contract or otherwise and bill you for the cost.

6. Extensions. General condition 1 establishes a time limit for the completion of the activity authorized by this permit. Unless there are circumstances requiring either a prompt completion of the authorized activity or a reevaluation of the public interest decision, the Corps will normally give favorable consideration to a request for an extension of this time limit.

Your signature below, as permittee, indicates that you accept and agree to comply with the terms and conditions of this permit.

_____ _____

(PERMITTEE SIGNATURE) (DATE)

_____

(PERMITTEE PRINTED OR TYPED NAME)

This permit becomes effective when the Federal official, designated to act for the Secretary of the Army, has signed below.

Joey Shoemaker (DATE)
Chief, East Branch

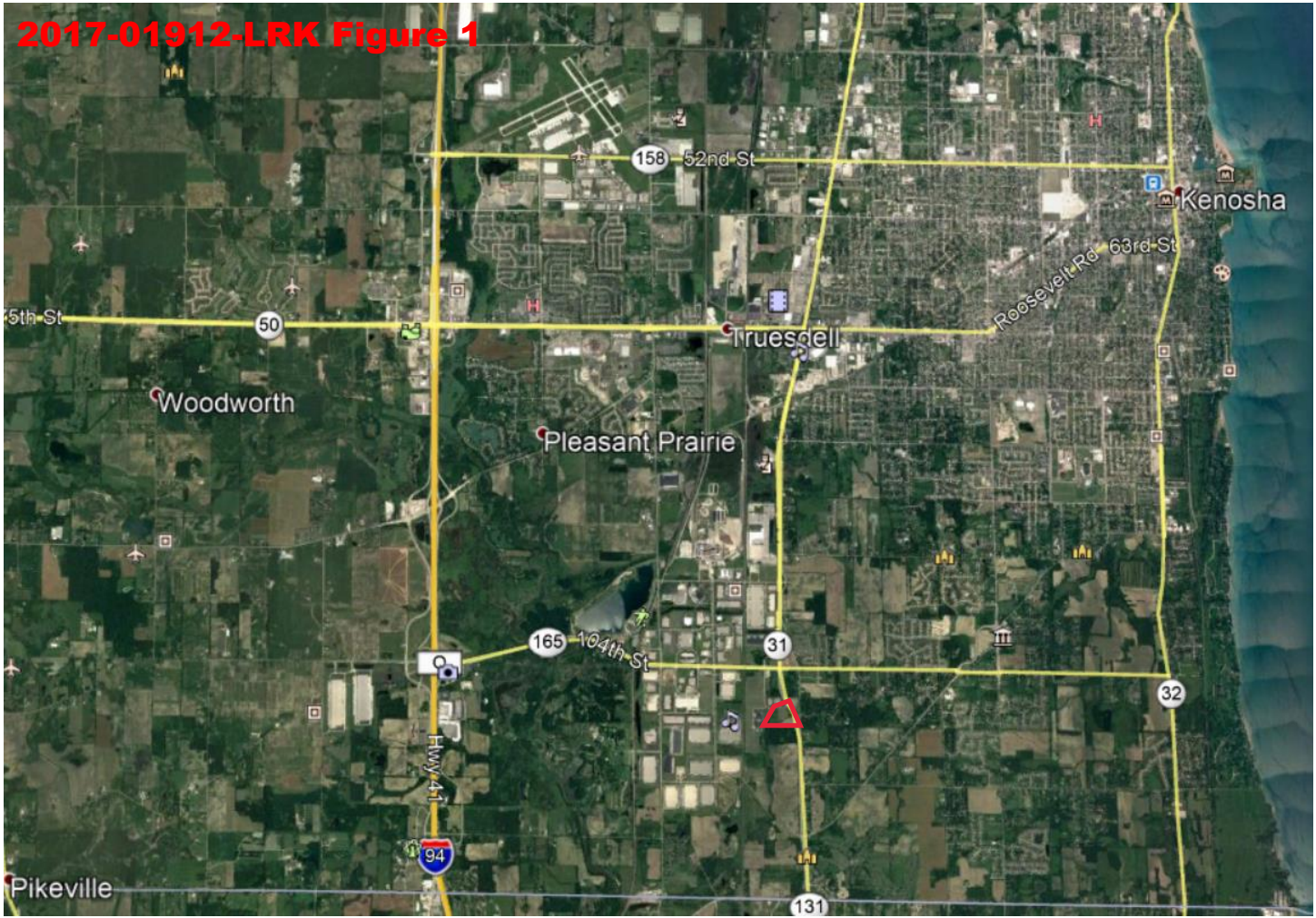
for:

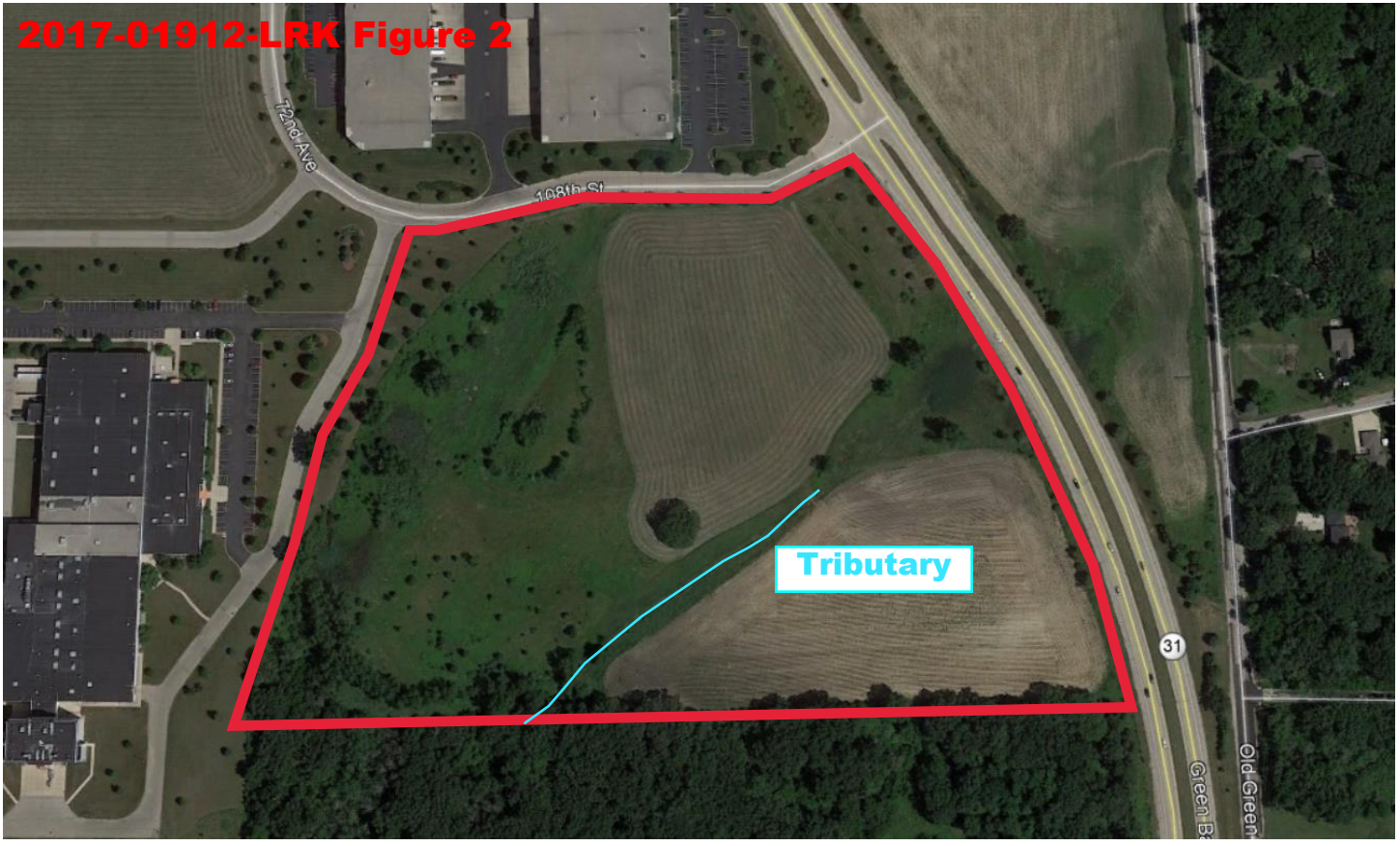
Eric R. Swenson
Colonel, Corps of Engineers
District Engineer

When the structures or work authorized by this permit are still in existence at the time the property is transferred, the terms and conditions of this permit will continue to be binding on the new owner(s) of the property. To validate the transfer of this permit and the associated liabilities associated with compliance with its terms and conditions, have the transferee sign and date below.

(TRANSFEREE SIGNATURE) (DATE)

(TRANSFEREE PRINTED OR TYPED NAME)


2017-01912-LRK Figure 1
158
52nd St
Kenosha
63rd St
Roosevelt Rd
5th St
50
Truesdell
Woodworth
Pleasant Prairie
165
104th St
31
32
Hwy 41
94
Pikeville
131


2017-01912-LRK Figure 2
124th Ave
108th St
Tributary
31
Green Ba
Old Green

2017-01912-LRK Figure 3

ALTERNATIVE 4 IMPACTS
AREA A = 17,275 SF
AREA B = 1,486 SF
AREA C = 11,139 SF
AREA D = 20,191 SF
AREA E = 13,349 SF
FROM SITE IMPROVEMENTS = 41,763 SF
FROM FLOODPLAIN ANALYSIS = 21,677 SF
TOTAL = 63,440 SF

NOTE: VILLAGE OF PLEASANT PRAIRIE REQUIRES THAT PROPOSED DRIVEWAYS LINE UP WITH EXISTING DRIVEWAYS ACROSS THE STREET.

NORTH

GRAPHICAL SCALE (FEET)
0 1" = 100' 200'

LEGEND

- EXISTING WETLANDS
- WETLAND IMPACTS AREAS FROM SITE IMPROVEMENTS
- WETLAND IMPACTS AREAS FROM FLOODPLAIN ANALYSIS

108th STREET
(70' R.O.W.)
76.07' N55°44'04"E
100.08' S34°42'06"E

WETLAND IMPACT A (APPROX. 17,275 SF)

POND 1

FACILITY "I"
147,600sf | 201 STALLS
[FUTURE 73 PARKING]

33-FT FALL ZONE

WETLAND IMPACT E (APPROX. 13,349 SF)

WETLANDS DELINEATED BY WETLAND & WATERWAY CONSULTING, LLC. AUGUST 2016

WETLAND IMPACT D (APPROX. 20,191 SF)

FUTURE EMPLOYEE OR TRAILER PARKING

POND 2

WETLAND IMPACT C (APPROX. 11,139 SF)

WETLAND IMPACT B (APPROX. 1,486 SF)

POND 3

FACILITY "II"
60,750sf | 108 STALLS

32-FT FALL ZONE

VOPP FIRE
(R45' - WALL TO WALL)

100 YEAR FLOOD PLAIN PER FEMA

S89°28'52"W 1134.14'

Z:\PROJECTS\2016\644.00-WI\COORDINATION\APPLICATIONS & PERMITS\IND WETLAND IMPACT\PRACTICABLE ANALYSIS EXHIBITS\644.00 WETLAND PRACTICABLE ALT ANALYSIS - ALT 4.DWG 5/12/2020 7:00 AM

ZILBER PROPERTY GROUP I PRACTICABLE ANALYSIS - ALT 4 (PREFERRED ALT)

4/22/2020

PINNACLE ENGINEERING GROUP
20725 WATERTOWN ROAD | SUITE 100 | BROOKFIELD, WI 53186 | WWW.PINNACLE-ENGR.COM |

PLAN | DESIGN | DELIVER PEG JOB# 644.00-WI

NOTIFICATION OF ADMINISTRATIVE APPEAL OPTIONS AND PROCESS AND REQUEST FOR APPEAL

Applicant: Jason Lueders (Zilber)	**File No.:** 2017-01912	**Date:** 11/XX/2026

Attached is:		See Section below
X	INITIAL PROFFERED PERMIT (Standard Permit or Letter of permission)	A
	PROFFERED PERMIT (Standard Permit or Letter of permission)	B
	PERMIT DENIAL	C
	APPROVED JURISDICTIONAL DETERMINATION	D
	PRELIMINARY JURISDICTIONAL DETERMINATION	E

SECTION I - The following identifies your rights and options regarding an administrative appeal of the above decision. Additional information may be found at http://usace.army.mil/inet/functions/cw/cecwo/reg or Corps regulations at 33 CFR Part 331.

A: INITIAL PROFFERED PERMIT: You may accept or object to the permit.

- ACCEPT: If you received a Standard Permit, you may sign the permit document and return it to the district engineer for final authorization. If you received a Letter of Permission (LOP), you may accept the LOP and your work is authorized. Your signature on the Standard Permit or acceptance of the LOP means that you accept the permit in its entirety, and waive all rights to appeal the permit, including its terms and conditions, and approved jurisdictional determinations associated with the permit.
- OBJECT: If you object to the permit (Standard or LOP) because of certain terms and conditions therein, you may request that the permit be modified accordingly. You must complete Section II of this form and return the form to the district engineer. Your objections must be received by the district engineer within 60 days of the date of this notice, or you will forfeit your right to appeal the permit in the future. Upon receipt of your letter, the district engineer will evaluate your objections and may: (a) modify the permit to address all of your concerns, (b) modify the permit to address some of your objections, or (c) not modify the permit having determined that the permit should be issued as previously written. After evaluating your objections, the district engineer will send you a proffered permit for your reconsideration, as indicated in Section B below.

B: PROFFERED PERMIT: You may accept or appeal the permit

- ACCEPT: If you received a Standard Permit, you may sign the permit document and return it to the district engineer for final authorization. If you received a Letter of Permission (LOP), you may accept the LOP and your work is authorized. Your signature on the Standard Permit or acceptance of the LOP means that you accept the permit in its entirety, and waive all rights to appeal the permit, including its terms and conditions, and approved jurisdictional determinations associated with the permit.
- APPEAL: If you choose to decline the proffered permit (Standard or LOP) because of certain terms and conditions therein, you may appeal the declined permit under the Corps of Engineers Administrative Appeal Process by completing Section II of this form and sending the form to the division engineer. This form must be received by the division engineer within 60 days of the date of this notice.

C: PERMIT DENIAL: You may appeal the denial of a permit under the Corps of Engineers Administrative Appeal Process by completing Section II of this form and sending the form to the division engineer. This form must be received by the division engineer within 60 days of the date of this notice.

D: APPROVED JURISDICTIONAL DETERMINATION: You may accept or appeal the approved JD or provide new information.

- ACCEPT: You do not need to notify the Corps to accept an approved JD. Failure to notify the Corps within 60 days of the date of this notice, means that you accept the approved JD in its entirety, and waive all rights to appeal the approved JD.
- APPEAL: If you disagree with the approved JD, you may appeal the approved JD under the Corps of Engineers Administrative Appeal Process by completing Section II of this form and sending the form to the division engineer. This form must be received by the division engineer within 60 days of the date of this notice.

E: PRELIMINARY JURISDICTIONAL DETERMINATION: You do not need to respond to the Corps regarding the preliminary JD. The Preliminary JD is not appealable. If you wish, you may request an approved JD (which may be appealed), by contacting the Corps district for further instruction. Also you may provide new information for further consideration by the Corps to reevaluate the JD.

SECTION II - REQUEST FOR APPEAL or OBJECTIONS TO AN INITIAL PROFFERED PERMIT

REASONS FOR APPEAL OR OBJECTIONS: (Describe your reasons for appealing the decision or your objections to an initial proffered permit in clear concise statements. You may attach additional information to this form to clarify where your reasons or objections are addressed in the administrative record.)

ADDITIONAL INFORMATION: The appeal is limited to a review of the administrative record, the Corps memorandum for the record of the appeal conference or meeting, and any supplemental information that the review officer has determined is needed to clarify the administrative record. Neither the appellant nor the Corps may add new information or analyses to the record. However, you may provide additional information to clarify the location of information that is already in the administrative record.

POINT OF CONTACT FOR QUESTIONS OR INFORMATION:

If you have questions regarding this decision and/or the appeal process you may contact:

Lorin Kinney
U.S. Army Corps of Engineers
Duluth Field Office
11 E Superior St
Duluth, MN
(651) 383-5914

If you only have questions regarding the appeal process you may also contact the Division Engineer through:

Administrative Appeals Review Officer
Mississippi Valley Division
P.O. Box 80 (1400 Walnut Street)
Vicksburg, MS 39181-0080
601-634-5820 FAX: 601-634-5816

RIGHT OF ENTRY: Your signature below grants the right of entry to Corps of Engineers personnel, and any government consultants, to conduct investigations of the project site during the course of the appeal process. You will be provided a 15 day notice of any site investigation, and will have the opportunity to participate in all site investigations.

	Date:	Telephone number:
_____ Signature of appellant or agent.		